

Court No. - 3

Case :- WRIT - C No. - 32407 of 2023

Petitioner :- Jai Dev Tivari

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Birendra Pratap Yadav, Krishna Kant Yadav

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Siddhartha Varma, J.

Hon'ble Manoj Bajaj, J.

This writ petition has been filed against the recovery certificate demanding Rs. 1,15,600/- from the petitioner.

Learned counsel for the petitioner states that the petitioner is ready and willing to pay the entire amount in installments.

Sri Nitesh Patel holding brief of Sri Udit Chandra learned counsel for the Electricity Department states that if the petitioner applies under Clause 6.14 of the U.P. Electricity Supply Code, 2005, and prays for fixing installments then the same shall be fixed by the Electricity Department.

Under such circumstances, without going into the merits of the case, we direct that if the petitioner applies under Clause 6.14 of the U.P. Electricity Supply Code, 2005, within a period of one week from today, then the same shall be decided within a period of one month thereafter.

For a period of one month or till the payment in installment starts, whichever is earlier, no recovery shall be made from the petitioner.

With these observations, the writ petition is disposed of.

Order Date :- 18.10.2023

PK

(Manoj Bajaj, J.) (Siddhartha Varma, J.)